

1 **SENATE FLOOR VERSION**

2 April 22, 2025

3 COMMITTEE SUBSTITUTE
4 FOR ENGROSSED
5 HOUSE BILL NO. 2854

By: Hasenbeck of the House

and

6 Seifried of the Senate

7
8 An Act relating to higher education; providing
9 legislative intent; amending 70 O.S. 2021, Sections
10 3213.1, 3405.1, 4662, 4665, 4667, and 4668, which
11 relate to course offerings at certain institutions
12 within The Oklahoma State System of Higher Education;
13 authorizing additional course offerings at certain
14 institutions beginning in certain academic year;
15 allowing duplication of certain course offerings
16 beginning in certain academic year; updating
17 statutory references; updating statutory language;
18 providing for noncodification; and providing an
19 effective date.

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. NEW LAW A new section of law not to be
22 codified in the Oklahoma Statutes reads as follows:

23 The Legislature encourages the Oklahoma State Regents for Higher
24 Education to exercise all powers necessary or convenient to
25 accomplish the purposes of Article XIII-A of the Oklahoma
26 Constitution and recommends that the State Regents allow up to one
27 change of function for each institution within The Oklahoma State
28 System of Higher Education. Exceptions to functions and associated

1 degree programs may also be considered for unique and specific
2 purposes, such as addressing unmet workforce needs that cannot be
3 met through existing programs or collaboration. All such requests
4 shall be approved by the institution's governing board and meet the
5 criteria outlined in the State Regents' policies and procedures.

6 SECTION 2. AMENDATORY 70 O.S. 2021, Section 3213.1, is
7 amended to read as follows:

8 Section 3213.1. A. The Oklahoma State Regents for Higher
9 Education shall make educational program resources at institutions
10 in The Oklahoma State System of Higher Education available to the
11 people in the Ponca City area. This program shall be known as the
12 University Center at Ponca City.

13 B. The State Regents shall draw upon the educational programs
14 of institutions best suited to provide the kind of educational
15 programs needed and shall, in pursuance of Article XIII-A of the
16 Oklahoma Constitution of Oklahoma and appropriate statutes, set the
17 standards of education as they relate to the programs operated to
18 assure that credits earned by students will be fully accepted at
19 institutions of higher education to which the students may transfer
20 the credit to apply toward an educational study objective. Northern
21 Oklahoma College shall have exclusive authority to offer all lower
22 division courses and programs at the University Center at Ponca City
23 as listed in the current college catalog of Northern Oklahoma
24 College. Beginning with the 2026-2027 academic year, Northern

1 Oklahoma College may offer, but shall not have exclusive authority
2 to offer, lower division courses and programs at the University
3 Center at Ponca City.

4 C. The State Regents may establish appropriate funds and
5 accounts~~7~~ including a revolving fund~~7~~ in the ~~Office of State Finance~~
6 Office of Management and Enterprise Services for servicing the
7 fiscal operations of the University Center at Ponca City. The funds
8 and accounts shall be subject to the direct supervision, management,
9 and control of the board of trustees created by subsection D of this
10 section. The people locally shall provide suitable physical plant
11 accommodations for the University Center at Ponca City.

12 D. There is hereby created a board of nine (9) trustees to be
13 appointed by the Governor by and with the consent of the Senate to
14 serve as the administrative agency for the University Center at
15 Ponca City. The board shall be a body corporate and shall adopt and
16 use an official seal. The board so created shall have the authority
17 to submit a budget annually to the Oklahoma State Regents for Higher
18 Education, administer monies budgeted by the State Regents, provide
19 educational facilities, recommend courses and programs to be offered
20 by participating institutions, select a chief executive officer
21 whose duties include the general coordination of approved programs
22 and services, and the selection of other appropriate nonteaching
23 personnel. The board of trustees is authorized to expend all monies
24 allocated to the University Center at Ponca City as may be necessary

1 to perform the duties and responsibilities imposed upon the board by
2 this section. For purposes of acquiring and taking title to real
3 and personal property from sources other than state appropriations,
4 the board is authorized to enter into contracts and to adopt rules
5 and regulations pertaining to such actions. The initial nine (9)
6 members shall serve their terms for the period to which originally
7 appointed, in numbered positions having dates of expiration
8 identical to the dates of expiration of the original appointments:

9 Position No. 1. The term of office of one member shall expire
10 on June 30, 2013, and each nine (9) years thereafter;

11 Position No. 2. The term of office of one member shall expire
12 on June 30, 2014, and each nine (9) years thereafter;

13 Position No. 3. The term of office of one member shall expire
14 on June 30, 2015, and each nine (9) years thereafter;

15 Position No. 4. The term of office of one member shall expire
16 on June 30, 2016, and each nine (9) years thereafter;

17 Position No. 5. The term of office of one member shall expire
18 on June 30, 2017, and each nine (9) years thereafter;

19 Position No. 6. The term of office of one member shall expire
20 on June 30, 2018, and each nine (9) years thereafter;

21 Position No. 7. The term of office of one member shall expire
22 on June 30, 2019, and each nine (9) years thereafter;

23 Position No. 8. The term of office of one member shall expire
24 on June 30, 2020, and each nine (9) years thereafter; and

1 Position No. 9. The term of office of one member shall expire
2 on June 30, 2021, and each nine (9) years thereafter.

3 The board shall organize and elect a chair, ~~vice-chair~~ vice
4 chair, and secretary annually.

5 E. The board of trustees may establish and maintain plans for
6 tenure and retirement of its employees and for payment of deferred
7 compensation of employees and may provide hospital and medical
8 benefits, accident, health and life insurance, and annuity contracts
9 for employees and pay for all or part of the cost with funds
10 available for payment of its operating expenses.

11 F. The board may establish with the State Treasurer any
12 accounts as are necessary to operate retirement, deferred
13 compensation, or benefits plans for its employees. The accounts
14 shall be revolving funds not subject to fiscal year limitations.
15 Funds deposited in the accounts may be invested in any of the types
16 of instruments in which the State Treasurer is authorized by law to
17 invest.

18 SECTION 3. AMENDATORY 70 O.S. 2021, Section 3405.1, is
19 amended to read as follows:

20 Section 3405.1. A. The Oklahoma State Regents for Higher
21 Education shall make resident college credit courses and programs
22 available to the people of Muskogee.

23 B. The Oklahoma State Regents for Higher Education shall
24 provide lower division classes and programs through a branch of

1 Connors State College, which shall be established and located in
2 Muskogee. Beginning with the 2026-2027 academic year, the State
3 Regents may provide lower and upper division classes and programs
4 through a branch of Connors State College, which shall be
5 established and located in Muskogee. The branch campus of Connors
6 State College shall be governed by the Board of Regents for the
7 Oklahoma Agricultural and Mechanical Colleges and administered
8 through Connors State College.

9 C. The ~~Oklahoma~~ State Regents ~~for Higher Education~~ shall
10 provide upper division classes and programs and graduate classes at
11 the Masters level through a branch of Northeastern State University,
12 which shall be established and located at Muskogee. Beginning with
13 the 2026-2027 academic year, the State Regents may provide lower and
14 upper division classes and programs and graduate classes at the
15 Masters level through a branch of Northeastern State University,
16 which shall be located at Muskogee. The branch campus of
17 Northeastern State University shall be governed by the Board of
18 Regents of Oklahoma Colleges and administered through Northeastern
19 State University.

20 SECTION 4. AMENDATORY 70 O.S. 2021, Section 4662, is
21 amended to read as follows:

22 Section 4662. On January 1, 1999, there shall be established as
23 a successor to Rogers University in Tulsa a branch institution of
24 Oklahoma State University which shall be known as ~~Oklahoma State~~

1 ~~University/Tulsa~~ Oklahoma State University-Tulsa and shall offer
2 upper division undergraduate courses and baccalaureate degree
3 programs. Beginning with the 2026-2027 academic year, Oklahoma
4 State University-Tulsa may offer lower and upper division
5 undergraduate courses and baccalaureate degree programs. No later
6 than July 1, 2001, the Board of Regents for the Oklahoma
7 Agricultural and Mechanical Colleges, in cooperation with the
8 Oklahoma State Regents for Higher Education, shall have developed
9 and implemented programs leading to baccalaureate degrees that can
10 be earned at ~~Oklahoma State University/Tulsa~~ Oklahoma State
11 University-Tulsa. Beginning with the ~~2001 - 2002~~ 2001-2002 academic
12 year, degrees earned at ~~Oklahoma State University/Tulsa~~ Oklahoma
13 State University-Tulsa shall be designated as awarded by the
14 Oklahoma State Regents for Higher Education acting through Oklahoma
15 State University; provided, that dual degree programs may be offered
16 at ~~Oklahoma State University/Tulsa~~ Oklahoma State University-Tulsa
17 and dual degrees may be awarded through Oklahoma State University
18 and other institutions.

19 SECTION 5. AMENDATORY 70 O.S. 2021, Section 4665, is
20 amended to read as follows:

21 Section 4665. ~~Courses~~ A. Except as provided for in subsection
22 B of this section, courses offered at the undergraduate level
23 through ~~Oklahoma State University/Tulsa~~ Oklahoma State University-
24 Tulsa shall not duplicate those offered by Tulsa Community College.

1 B. Beginning with the 2026-2027 academic year, courses offered
2 at the undergraduate level through Oklahoma State University-Tulsa
3 may duplicate those offered by Tulsa Community College, as
4 determined by the Oklahoma State Regents for Higher Education.

5 SECTION 6. AMENDATORY 70 O.S. 2021, Section 4667, is
6 amended to read as follows:

7 Section 4667. On July 1, 2001, there shall be established a
8 branch of Langston University within the Tulsa metropolitan area
9 consistent with the statewide plan for Langston University as
10 provided in ~~Section 6 of this act~~ Section 4666 of this title.

11 Langston University shall continue to meet the missions and programs
12 of the Langston Urban Center in Tulsa. The Oklahoma State Regents
13 for Higher Education are authorized to make upper division
14 undergraduate and graduate course offerings at the Langston
15 University ~~Branch~~ branch in Tulsa available as the State Regents
16 shall determine are appropriate. Beginning with the 2026-2027
17 academic year, the State Regents are authorized to make lower and
18 upper division undergraduate and graduate course offerings at the
19 Langston University branch in Tulsa available as the State Regents
20 shall determine are appropriate. Undergraduate degree programs
21 offered through ~~Oklahoma State University/Tulsa~~ Oklahoma State
22 University-Tulsa shall not duplicate those undergraduate degree
23 programs offered by the Langston University ~~Branch~~ branch in Tulsa,
24 as determined by the ~~Oklahoma~~ State Regents ~~for Higher Education,~~

1 and shall be consistent with and in furthering implementation of the
2 statewide plan for Langston University as developed by the State
3 Regents pursuant to ~~Section 6 of this act~~ Section 4666 of this title
4 and filed with the Office for Civil Rights, United States Department
5 of Education. Provided, however, that beginning with the 2026-2027
6 academic year, undergraduate degree programs offered through
7 Oklahoma State University-Tulsa may duplicate those undergraduate
8 degree programs offered by the Langston University branch in Tulsa,
9 as determined by the State Regents.

10 The Oklahoma State Regents for Higher Education shall fund
11 Langston University at a level not less than its fiscal year 1998
12 level, and its Education and General Budget shall be held harmless
13 from reductions in succeeding years. The ~~Oklahoma~~ State Regents ~~for~~
14 ~~Higher Education~~ shall allocate funds to Langston University
15 sufficient to fund ~~full-time~~ full-time faculty in Tulsa at a level
16 equal to seventy percent (70%) of its faculty level that existed in
17 Tulsa in fiscal year 1998 and adequate building and classroom space
18 which were funded in fiscal year 1998 in order to carry out all
19 functions in Tulsa. The Board of Regents for the Oklahoma
20 Agricultural and Mechanical Colleges shall allocate space for
21 Langston University in Tulsa.

22 It is the intent of the Legislature that Langston University be
23 funded at a level consistent with the average allocation and
24

1 allotment of the institutions in the regional funding tier as
2 established by the Oklahoma State Regents for Higher Education.

3 Beginning with the ~~2001—2002~~ 2001-2002 academic year, degrees
4 earned at the Langston University ~~Branch~~ branch in Tulsa shall be
5 designated as awarded by the Oklahoma State Regents for Higher
6 Education acting through Langston University.

7 SECTION 7. AMENDATORY 70 O.S. 2021, Section 4668, is
8 amended to read as follows:

9 Section 4668. On July 1, 2001, there may be established a
10 branch of Northeastern State University within the Tulsa
11 metropolitan area. The Oklahoma State Regents for Higher Education
12 are authorized to make upper division undergraduate and graduate
13 course offerings at the Northeastern State University branch in
14 Broken Arrow available as the State Regents shall determine are
15 appropriate. Beginning with the 2026-2027 academic year, the State
16 Regents are authorized to make lower and upper division
17 undergraduate and graduate course offerings at the Northeastern
18 State University branch in Broken Arrow available as the State
19 Regents shall determine are appropriate. Undergraduate degree
20 programs offered through ~~Oklahoma State University/Tulsa~~ Oklahoma
21 State University-Tulsa shall not duplicate those undergraduate
22 degree programs offered by Northeastern State University in Tulsa,
23 as determined by the ~~Oklahoma~~ State Regents ~~for Higher Education~~.
24 Provided, however, that beginning with the 2026-2027 academic year,

1 undergraduate degree programs offered through Oklahoma State
2 University-Tulsa may duplicate those undergraduate degree programs
3 offered by Northeastern State University in Tulsa, as determined by
4 the State Regents.

5 The ~~Oklahoma~~ State Regents ~~for Higher Education~~ shall fund
6 Northeastern State University at a level not less than its fiscal
7 year 1998 level, and its Education and General Budget shall be held
8 harmless from reductions in succeeding years.

9 It is the intent of the Legislature that Northeastern State
10 University in Broken Arrow be funded at a level consistent with the
11 average allocation and allotment of the institutions in the regional
12 funding tier as established by the Oklahoma State Regents for Higher
13 Education.

14 Beginning with the ~~2001—2002~~ 2001-2002 academic year, degrees
15 earned at the Northeastern State University ~~Branch~~ branch in ~~Tulsa~~
16 Broken Arrow shall be designated as awarded by the Oklahoma State
17 Regents for Higher Education acting through Northeastern State
18 University.

19 SECTION 8. This act shall become effective November 1, 2025.

20 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
21 April 22, 2025 - DO PASS AS AMENDED BY CS
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